NIRBHAYA RAPE CASE, 2012

STIRRING A NATION'S CONSCIENCE

It took the savage gang-rape of a young physiotherapy intern on the streets of the national capital to provoke outrage so massive that the lawmakers were left with no choice but to revisit the country's existing laws on rape and punishment and make them more stringent

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As the news unfolded on that cold night on December 16, 2012, a whole country felt a visceral pain in the pit of its stomach. A young 23-year-old physiotherapy intern, out on a casual movie night, boarded a private bus in national capital Delhi that evening, unaware of the unimaginable horror that lay in wait. She came to be called Nirbhaya, the fearless one, but we can never know the deep fear she must have felt when six men brutally gang-raped and assaulted her, leaving her with injuries so severe that she succumbed to them a few days later. The sheer savagery of the act—a metal rod inserted into her and her intestines pulled out, her naked body shoved into the street—jolted the entire country, sparking nationwide protests, with millions spilling out into the streets, braving the cold, the police batons and the water cannons, demanding justice for Nirbhaya and systemic change.

31,982
WOMEN RAPED
in India in 2022; 1,017 of them minors. 250 were raped and killed

The public fury catalysed the government into revisiting existing laws governing sexual assault under the Indian Penal Code, the

NIRBHAYA'S LEGACY

» **Criminal Law Amendment Act, 2013, which broadened the definition of rape, imposed stricter punishments, including the death penalty for repeat offenders, and prohibited the invasive two-finger test for survivors**

» **Special fast-track courts were set up to expedite sexual assault cases and ensure swifter justice**

» **Juvenile Justice Act Amendment, 2015, which allowed juveniles aged 16–18 to be tried as adults for heinous crimes like rape**

» **Criminal Law Amendment Act, 2018, which prescribed death penalty for child rape**